

Opinion of the Court

hunger strikes, and suicide attempts,” *id.*, at 260a; that he ignored other “direct evidence of [the] abuse, including logs and other official [records],” *id.*, at 280a; that he took no action “to rectify or address the situation,” *id.*, at 260a; and that the abuse resulted in the injuries described above, see *supra*, at 128. These allegations—assumed here to be true, subject to proof at a later stage—plausibly show the warden’s deliberate indifference to the abuse. Consistent with the opinion of every judge in this case to have considered the question, including the dissenters in the Court of Appeals, the Court concludes that the prisoner abuse allegations against Warden Hasty state a plausible ground to find a constitutional violation if a *Bivens* remedy is to be implied.

Warden Hasty argues, however, that *Bivens* ought not to be extended to this instance of alleged prisoner abuse. As noted above, the first question a court must ask in a case like this one is whether the claim arises in a new *Bivens* context, *i. e.*, whether “the case is different in a meaningful way from previous *Bivens* cases decided by this Court.” *Supra*, at 139.

It is true that this case has significant parallels to one of the Court’s previous *Bivens* cases, *Carlson v. Green*, 446 U. S. 14. There, the Court did allow a *Bivens* claim for prisoner mistreatment—specifically, for failure to provide medical care. And the allegations of injury here are just as compelling as those at issue in *Carlson*. This is especially true given that the complaint alleges serious violations of Bureau of Prisons policy. See 28 CFR §552.20 (2016) (providing that prison staff may use force “only as a last alternative after all other reasonable efforts to resolve a situation have failed” and that staff may “use only that amount of force necessary to [ensure prison safety and security]”); §552.22(j) (“All incidents involving the use of force . . . must be carefully documented”); §542.11 (requiring the warden to investigate certain complaints of inmate abuse).

Yet even a modest extension is still an extension. And this case does seek to extend *Carlson* to a new context. As